

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 09/23/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	ARGANDA Trust (2021-01212359)	MOTION FOR RECONSIDERATION (ROA 352) Before this Court is Petitioner Susan Lopez's Application for Reconsideration brought pursuant to Code of Civil Procedure section 1008. In the Application for Reconsideration, Petitioner requests the Court reconsider its "Ruling on Submitted Matter." From context, the Court infers Petitioner seeks reconsideration of the Court's Final Statement of Decision, issued June 4, 2026 (ROA 342). On August 26, 2026, the Court on its own motion continued the Motion to 9/23/26 at 9:00 a.m. in CM06, ordering opposition and reply briefs be filed in conformance with Code of Civil Procedure section 1005. Neither an opposition nor reply brief have been filed. The Court issued its Tentative and Proposed Statement of Decision on April 22, 2026 (ROA 335) and served the Tentative and Proposed Statement of Decision on counsel via email. In her motion for reconsideration, Petitioner alleges she filed objections to the Tentative and Proposed Statement of Decision on May 5, 2026, 13 days after being served with Proposed Statement of Decision; such objections were within the timeframe allowed under California Rule of Court, Rule 3.1590(g). Petitioner further argues that on June 22, 2026, she received notification that the filing was rejected because the dates were faint. [The Court notes that it has reviewed the e-filed document in the court records and both the date and the handwritten signature are faint and difficult, if not impossible, to read; the Court does not dispute Petitioner's copy is not as faint.] Finally, Petitioner argues that had the rejection been sent timely, she would have had the opportunity to resubmit the objections timely. Under these circumstances California Code of Civil Procedure Section 1008(a) warrants the granting of this

	motion. The Court deems Petitioner’s Objection to Ruling on Submitted Matter (Exhibit 1 to the Motion for Reconsideration) to have been timely filed. The Court has read and considered Petitioner’s Objection to Ruling on Submitted Matter (attached as Exhibit 1 to the Application for Reconsideration). Petitioner requests the Court reverse the ruling that requires Petitioner to bear the costs of litigation and, instead, order the Trust to pay the costs of litigation. Petitioner bases this request on the Court’s findings that the Trustee had not provided the annual accounting for January 2023 through March 31, 2026 and that Petitioner did not act in bad faith. Petitioner further requests the Trustee be ordered to provide an accounting for January 2023 through March 31, 2026 no later than June 30, 2026. The Court declines to grant Petitioner’s first request, that the Court reverse its order that Petitioner pay the costs of litigation. First, the Court <u>again</u> reminds Petitioner that the “main purpose of an objection to a proposed statement of decision is not to reargue the merits, but to bring to the court’s attention inconsistencies between the court’s ruling and the document that is supposed to embody and explain that ruling.” (<i>Heaps v. Heaps</i> (2004) 124 Cal. App. 4th 286, 292.) Second, the Court purposefully exercised its discretion to award costs to the Trustee, after having considered Petitioner’s negligence argument concerning a third accounting and after having found Petitioner’s Petitions and Objections meet “the low threshold of reasonable cause” and declining to award attorney’s fees to the Trustee. As to the second request, the Court notes the Trustee filed an accounting for the period January 1, 2023 through March 31, 2026 on July 20, 2026 (ROA 356), thus mooted that issue. The Court’s Final Statement of Decision filed June 4, 2026 (ROA 342), therefore remains unchanged and in full force and effect.